

File No.: EXP202405153

## RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on March 1, 2024. The complaint is directed against MONUMENTAL FORMA SPORT, S.L. with NIF B96608237 (hereinafter, the respondent). The reasons for the complaint are as follows: The complainant states that they received an unsolicited electronic communication of a commercial nature via SMS, on the mobile phone number \*\*\*PHONE.1. The communication was received after having unsuccessfully requested the deletion of their personal data on 12/04/2022 and having urged the respondent to respond to the deletion request made by this Agency, within the framework of the file with reference number EXP202206015.

The message was sent on 05/02/24, at 13:57 hours, without any procedure to oppose it.

Along with the complaint, the complainant provides the following documentation:

- Screenshot of the commercial SMS sent on 05/02/24, at 13:57 hours, showing the sender's name as "FORMA SPORT." This message includes the following text: "Come accompanied and get 4 months for €1. 8 months for €169. Check conditions. <https://forma-sport.com/centros-de-preferencia>."
- Copy of the phone bill, dated 04/02/2024, in the name of the complainant, which includes the mobile line number \*\*\*PHONE.1.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 15/04/24, as stated in the certificate in the file.

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Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, a copy was sent by postal mail, which was duly notified on 07/05/2024.

In this notification, the obligation to communicate electronically with the Administration was reminded, and the means of access to such notifications were provided, reiterating that, henceforth, notifications would be made exclusively by electronic means.

Subsequently, on 08/05/2024, the respondent also accessed the content of the electronic notification made.

No response was received to this transfer letter.

THIRD: On June 1, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On July 24, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 21 of the LSSI, classified under Article 38.4.d) of the LSSI.

FIFTH: The aforementioned initiation agreement was duly notified, in accordance with the rules established in the LPACAP, on 05/08/2024. After the period granted for the submission of allegations

had elapsed, it was confirmed that no allegations had been received from the respondent. Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise pronouncement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution. In view of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

#### PROVEN FACTS

FIRST: The complainant states that they received an unsolicited electronic communication of a commercial nature via SMS, on the mobile phone number \*\*\*PHONE.1. The communication was received after having unsuccessfully requested the deletion of their personal data on 12/04/2022 and having urged the respondent to respond to the deletion request made by this Agency, within the framework of the file with reference number EXP202206015.

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The message was sent on 05/02/24, at 13:57 hours, without any procedure to oppose it.

It includes the following documentation:

- Screenshot of the commercial SMS sent on 05/02/24, at 13:57 hours, showing the sender's name as "FORMA SPORT." This message includes the following text: "Come accompanied and get 4 months for €1. 8 months for €169. Check conditions. <https://forma-sport.com/centros-de-preferencia>."
- Copy of the phone bill, dated 04/02/2024, in the name of the claimant, which includes the mobile line number \*\*\*\*TELÉFONO.1.

SECOND: The Spanish Agency for the Protection of Data has notified the respondent of the Agreement to Initiate this Sanctioning Procedure, without the said respondent having submitted allegations or evidence contradicting the claimed facts.

#### LEGAL GROUNDS

I

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the powers attributed to the Spanish Agency for the Protection of Data by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for the Protection of Data must process in exercising the powers attributed to it by other laws."

II

Currently, "spam" refers to all types of unsolicited communication made electronically. Thus, "spam" is understood to be any unsolicited message that typically aims to offer, market, or try to arouse interest

in a product, service, or company. Although it can be done through various means, the most commonly used is email.

This conduct is particularly serious when carried out en masse. The sending of commercial messages without prior consent is prohibited by Spanish legislation.

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The low cost of sending emails via the Internet or through mobile telephony (SMS and MMS), its possible anonymity, the speed with which it reaches recipients, and the possibilities it offers in terms of the volume of transmissions, have allowed this practice to be carried out abusively and indiscriminately.

The LSSI, in its article 21.1, expressly prohibits "the sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients of the same." In other words, commercial communications aimed at the direct or indirect promotion of the goods or services of a company, organization, or person engaged in commercial, industrial, artisanal, or professional activities are disallowed without the express consent of the recipient. However, this prohibition has its exception in paragraph 2 of the aforementioned article 21, which authorizes the sending of commercial communications when "there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client." Thus, the sending of unsolicited commercial communications, outside the exceptional case of article 21.2 of the LSSI, may constitute a minor or serious infringement of the LSSI.

In this regard, according to these regulations, consent must not only be prior, specific, and unequivocal, but also informed. This information must be full and accurate regarding the sector of activity from which the recipient may receive advertising, with a warning about the right to refuse or withdraw consent. This information must be configured as a necessary prerequisite to validate the expression of will of the affected party.

III

As already noted, the LSSI prohibits unsolicited or expressly authorized commercial communications, based on a concept of commercial communication that is classified as an information society service and is defined in its Annex as follows:

"f) 'Commercial communication': any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in commercial, industrial, artisanal, or professional activities.

For the purposes of this Law, the data that allow direct access to the activity of a person, company, or organization, such as the domain name or email address, will not be considered commercial communication, nor will communications related to the goods, services, or image offered when they are prepared by a third party and without economic consideration."

The concept of commercial communication, according to the definition included in Annex f), first paragraph of the LSSI, encompasses all forms of communications intended to promote, directly or indirectly, goods, services, or the image of

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a company, organization, or person engaged in commercial, industrial, artisanal, or professional activity.

On the other hand, the LSSI in its Annex a) defines "Information Society Service" as "any service normally provided for a fee, at a distance, by electronic means and at the individual request of the

recipient."

The concept of an information society service also includes services not remunerated by their recipients, to the extent that they constitute an economic activity for the service provider."

The aforementioned section adds that the sending of commercial communications is an information society service, provided that it represents an economic activity. According to section d) of the cited Annex, a recipient is the "natural or legal person who uses, whether or not for professional reasons, an information society service."

From the above, it is deduced that when the commercial communication does not meet the requirements of the concept of Information Society Services, it loses its character as a commercial communication. In this regard, the second paragraph of Annex f) of the LSSI indicates two cases that will not be considered commercial communications for the purposes of this Law. On the one hand, the data that allows direct access to the activity of a person, company, or organization, such as the domain name or email address, and, on the other, communications related to goods, services, or the image offered when they are prepared by a third party and without economic compensation.

IV

Title VII of the LSSI under the heading "Infringements and Sanctions" contains the sanctioning regime applicable in the event that any of the infringements listed in the infringement table contained therein occur.

Specifically, Article 37 specifies that "providers of information society services are subject to the sanctioning regime established in this Title when this Law is applicable to them."

The definition of service provider is contained in section c) of the Annex of the aforementioned regulation, which considers as such the "natural or legal person who provides an information society service."

In the present case, the claiming party states that they received a commercial communication from the claimed party, despite not having given their consent for it. Furthermore, it is evidenced that they exercised, unsuccessfully, the right to delete their personal data before the claimed party through the email address provided in the privacy policy published on the website of the claimed entity.

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It should also be added that the claimed party was urged to respond to the deletion request by this Agency, within the framework of the file with reference number EXP202206015.

For the reasons stated, it is considered that the sending of the commercial communication referred to in the complaint constitutes an infringement, attributable to the claimed party, for violation of Article 21 of the LSSI, which states the following:

"1. The sending of advertising or promotional communications by email or other equivalent electronic means that have not previously been requested or expressly authorized by the recipients is prohibited.  
2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the recipient's contact data and uses it to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility of opposing the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such address is prohibited."

The aforementioned infringement is classified as minor in Article 38.4.d) of the LSSI, which qualifies as such, "The sending of commercial communications by email or other equivalent electronic means when such communications do not meet the requirements established in Article 21 and do not

constitute a serious infringement."

V

In accordance with the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000, with the criteria for their graduation established in Article 40 of the same regulation, which provides the following:

"The amount of the fines imposed shall be graduated according to the following criteria:

- a) The existence of intent.
- b) The period of time during which the infringement has been committed.
- c) The recurrence of the commission of infringements of the same nature, when this has been declared by a firm resolution.
- d) The nature and amount of the damages caused.
- e) The benefits obtained from the infringement.
- f) The volume of business affected by the committed infringement.

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g) Adherence to a code of conduct or an advertising self-regulation system applicable to the infringement committed, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent body or bodies."

In relation to the criteria for the graduation of sanctions set forth in the transcribed Article 40 of the LSSI, based on the evidence obtained, it is considered that in this case the aggravating criterion a) of the aforementioned article applies, considering that the sending is the result of an intentional act without the consent of the affected party.

The balance of the circumstances contemplated, regarding the infringement committed by violating the provisions of Article 21 of the LSSI, allows for the imposition of a fine of €5000 (five thousand euros). Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of sanctions whose existence has been established,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on MONUMENTAL FORMA SPORT, S.L., with NIF B96608237, for an infringement of Article 21 of the LSSI, classified under Article 38.4.d) of the LSSI, a fine of €5000 (five thousand euros).

SECOND: TO NOTIFY this resolution to MONUMENTAL FORMA SPORT, S.L.

THIRD: This resolution will be executive once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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